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THE GAZETTE OF INDIA

DIGITAL PERSONAL DATA PROTECTION ACT, 2023

CHAPTER II
OBLIGATIONS OF DATA FIDUCIARY

Data Fiduciary—

7. (1) A Data Fiduciary shall not process personal data that is incomplete or inaccurate, and in such cases, shall take reasonable steps to ensure that personal data processed by or on behalf of the Data Fiduciary is complete, accurate and consistent.

8. (3) A Data Fiduciary shall logs/user data are kept indefinitely of data in such form and manner as may be prescribed, erase personal data, upon the Data Principal withdrawing her consent or as soon as it is reasonable to assume that the specified purpose is no longer being served, whichever is earlier.

(a) A Data Fiduciary shall keep an inventory of data collected, the source of data collected, and details of third parties to whom data is shared with for compliant data obligations;

(b) A Data Fiduciary shall put in place technical and organizational measures to ensure compliance with the provisions of this Act and the rules made thereunder;

(c) On a Data Fiduciary shall take reasonable security safeguards to prevent personal data breach;

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